

Analysis

The Demurrer is unopposed.

Disposition

The Court finds and orders as follows:

1. The Demurrer is SUSTAINED.
2. Leave to amend is DENIED.
3. Moving party to submit a revised proposed form of order.

7. 9:00 AM CASE NUMBER: C25-01457
CASE NAME: ADELE HARRISON VS. ALAMEDA-CONTRA COSTA TRANSIT DISTRICT,
***HEARING ON MOTION IN RE: SEEK MANDATORY RELIEF FROM THE COURT'S ORDER GRANTING**
DEFENDANT'S DEMURRER
FILED BY: HARRISON, ADELE
TENTATIVE RULING:

Introduction

Before the Court is Defendant's Motion to for relief from the Court's order sustaining Defendant Alameda-Contra Costa Transit District's ("AC Transit" or "Defendant") demurrer without leave to amend, pursuant to Code of Civil Procedure section 473(b), on grounds of attorney mistake and neglect based on Plaintiff's counsel's mis-calendaring of the Government Code section 945.6(a)(1) filing deadline, which led to the late filing of the Plaintiff's complaint and the Court's subsequent order sustaining the Defendant's demurrer. The motion seeks to vacate the order sustaining the demurrer and to permit the action to proceed on the merits.

For the reasons stated below, **the Motion to for relief from the Court's order sustaining Defendant Alameda-Contra Costa Transit District's ("AC Transit") Demurrer without leave to amend is DENIED.**

Procedural Background

<u>Date</u>	<u>Event</u>
May 22, 2024	Subject Incident
June 11, 2024	Plaintiff presents Claim for Damages to Defendant AC Transit.
June 21, 2024	Defendant AC Transit Sends Plaintiff Notice of Insufficient Claim
July 1, 2024	Plaintiff presents an Amended Claim for Damages to Defendant AC Transit.
July 17, 2024	Defendant AC Transit rejects Plaintiff's Claim for Damages and notifies Plaintiff that she has six months to file a court action or

January 17, 2025	Last day for Plaintiff to file court action on her claim.	
March 17, 2025	Plaintiff petitions Alameda County Superior Court for Leave to File Late Action	
May 22, 2025	Alameda County Superior Court denies Plaintiff's Petition for Leave to File Late Action	
May 22, 2025	Plaintiff Files Complaint for Damages in Contra Costa County Superior Court	
June 2, 2025	Plaintiff serves Defendant AC Transit with Summons and Complaint	

Legal Standard for Code Civ. Proc. § 473

It has long been established that “[the policy of the law is to have every litigated case tried upon its merits, and it looks with disfavor upon a party, who, regardless of the merits of the case, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary.” (*Weitz v. Yankosky* (1966) 63 Cal.2d 849, 854-855.) Thus, “the provisions of section 473 ... are to be liberally construed and sound policy favors the determination of actions on their merits.” [Citation.]’ [Citation.] [B]ecause the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.” (*Shapell SoCal Rental Properties, LLC v. Chico's FAS, Inc.* (2022) 85 Cal.App.5th 198, 212.) “Section 473 is often applied liberally where the party in default moves promptly to seek relief, and the party opposing the motion will not suffer prejudice if relief is granted. [Citations.] In such situations “very slight evidence will be required to justify a court in setting aside the default.” [Citations.]” (*Fasuyi v. Permatex, Inc.* (2008) 167 Cal.App.4th 681, 695.)

Movant seeks to set aside the default judgment pursuant to Code of Civil Procedure section 473 (b). “The statute includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right.” (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25.) “Although this bifurcation is not demarcated in any internal subtitling, it is plainly evidence in the textual structure of the statute.” (*Ibid.*)

When moving to set aside a default under Code of Civil Procedure section 473(b), the moving party has the burden of proof. (*In re Marriage of Kieturakis* (2006) 138 Cal.App.4th 56, 88.) However, section 473 is often applied liberally when a party in default moves promptly to seek relief and the party opposing the motion will not suffer prejudice if relief is granted. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233.)

Mandatory Provision Attorney Fault

The ‘mandatory’ provision that relates to times when an attorney admits fault in causing the default is provided for in the later portion of the statute:

Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in

proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.

In accordance with the mandatory provision of section 473 subdivision (b), the court is required to set aside a default/default judgment "whenever an application for relief ... is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect." (Code Civ. Proc. § 473 (b).) The statute, "does not provide for any exception to this requirement," even if the client claims that the attorney abandoned them. (*Las Vegas Land & Development Co., LLC v. Wilkie Way, LLC* (2013) 219 Cal.App.4th 1086, 1092; see also Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2020) ¶15294a [noting "when the client is unable to obtain an affidavit because the attorney has abandoned the client, mandatory relief is unavailable."].) In "the case of any attorney's abandonment of a client, the injured client's remedy is to bring a motion for *discretionary* relief under section 473 ... [or] bring an action against its attorney." (*Id.* at 1093.)

"[T]he court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect vacate any ... resulting default [or default judgment] ... entered against his or her client...." (Code Civ. Proc. § 473, subd. (b).)

Analysis

Code of Civil Procedure Section 473 Cannot Circumvent the Statute of Limitations

Government Code section 945.6(a)(1) requires a plaintiff to file suit within six months after a public entity provides written notice of claim rejection. This limitations period is mandatory and jurisdictional. (*City of Salinas v. Workers' Comp. Appeals Bd.* (2025) 113 Cal.App.5th 801, 815.) When a party misses a jurisdiction deadline, the court lacks authority to proceed and must dismiss the action, regardless of any equitable considerations that might favor a decision on the merits. (*Id.* at 872; *Law Finance Group, LLC v. Key* (2023) 14 Cal.5th 932, 950).

Relief under Code of Civil Procedure section 473(b) does not apply to failures to comply with statutes of limitations and cannot be used to revive an action filed after the limitations period has expired. (*Castro v. Sacramento County Fire Protection Dist.* (1996) 47 Cal.App.4th 927, 933.) In *Castro*, the plaintiff filed suit 19 days after the expiration of the six-month period following claim rejection and sought relief under Code of Civil Procedure section 473 based on counsel's calendaring error. (*Id.* at 929.) The Court of Appeal held that C.C.P. § 473 relief was unavailable, emphasizing that permitting such relief would undermine the purpose of statutes of limitations and create an impermissible extension of jurisdictional deadlines. (*Castro*, *supra*, 47 Cal.App.4th at 929–931.)

Castro is directly on point to these procedural facts. In *Castro*, the Appellate Court upheld the trial court's ruling to sustain a demurrer without leave to amend for Plaintiff's failure to comply with the statute of limitation pursuant to Government Code section 945.6(a)(1). Plaintiff attempts to improperly invoke Code of Civil Procedure section 473(b) to obtain relief from her failure to file her complaint within the mandatory six-month limitations period set forth in Government Code section 945.6(a)(1).

Plaintiff's Sole Cited Case Does Not Apply

The only case cited in Plaintiff's moving papers is inapposite. In *Shayan*, the Court of Appeal held that relief under section 473, based on an attorney's mistake, did not apply to a judgment entered after trial on the merits, and had not been a default, a default judgment, or a dismissal. (*Shayan v. Spine Care & Orthopedic Physicians* (2020) 44 Cal.App.5th 167, 169.)

Unlike the appellant in *Shayan*, who filed a timely complaint but sought discretionary relief after an adverse judgment after a trial on the merits, Plaintiff here filed an untimely complaint from the outset. Nothing in *Shayan* suggests that Code of Civil Procedure section 473(b) can revive an action that was jurisdictionally time-barred at its inception.

Conclusion

For the reasons analyzed above, **the Motion to for relief from the Court's order sustaining Defendant Alameda-Contra Costa Transit District's Demurrer without leave to amend is DENIED.**

8. 9:00 AM CASE NUMBER: C25-02141

CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND

***HEARING ON MOTION IN RE: COMPEL FURTHER RESPONSES FOR REQUEST FOR PRODUCTION OF DOCUMENTS AND MONETARY SANCTIONS**

FILED BY: MALBOUBI, RASSOUL

TENTATIVE RULING:

Plaintiff Rassoul Malboubi ("Plaintiff") filed a Motion to Compel Further Responses on February 19, 2026 (the "Motion to Compel Further Responses"). The Motion to Compel Further Responses was set for hearing on May 4, 2026. The motion is opposed.

Background

Plaintiff seeks further responses to discovery requests propounded on defendant City of Richmond (the "City"), described as "Plaintiff's Amended and Streamlined Requests for Production of Documents (Set Three), served on January 5, 2026." See Motion to Compel Further Responses, p. 2.

As with another prior motion to compel, Plaintiff failed to file a Separate Statement pursuant to the requirements of Rule 3.1345 of the California Rules of Court ("CRC") with the moving papers.

Plaintiff belatedly filed a "SUPPLEMENTAL SEPARATE STATEMENT" in support of the Motion to Compel Further Responses on March 9, 2026 (the "Separate Statement").

Analysis

As noted above, Plaintiff failed to file a Separate Statement in support of the Motion to Compel Further Responses with the moving papers. Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement, including a motion to compel further responses to interrogatories or a demand for inspection of documents. Rule 3.1345(a)(1)-(3); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) ("Rutter Civ. Pro.") § 8:602.5. CRC 3.1345 provides that "Any motion involving the content of a discovery request or the responses to such a request **must be accompanied by** a separate statement..." CRC 3.1345(a) (emphasis added).

Even if the Court were inclined to consider the belatedly filed Separate Statement, it fails to conform to the requirements of the CRC. There are very specific requirements for the formatting and content